

FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr. Department Advocate's Office March 28, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-27942 against Police Officer Christopher Busuttil, Tax Registry No. 960299. This case was conferenced on March 19, 2024, before Assistant Deputy Commissioner of Trials, Jeffrey Adler, where CCRB recommended a penalty of the forfeiture of TEN (10) vacation days with the understanding that the Charges and Specifications will be dismissed for plea purposes. ADCT Jeff Adler agreed that the penalty should be a Command Discipline Schedule B, but he disagreed with the forfeiture of TEN (10) vacation days and stated that he believed the penalty should be the forfeiture of FIVE (5) vacation days.

CCRB respectfully disagrees with ADCT Jeff Adler. CCRB maintains that the recommended penalty should be the forfeiture of TEN (10) vacation days. The Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor APU
New York City Civilian Complaint Review Board

DISAPPROVED

JUN 21 2024
Edward A. Caban
EDWARD A. CABAN
POLICE COMMISSIONER

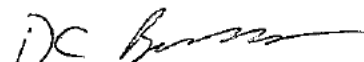


DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-27942
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, BUSUTTIL	FIRST CHRISTOPHE	M.I. J	COMMAND HOUSING PSA 9
SHIELD NO. 10488	TAX REGISTRY NO. 960299	SOCIAL SECURITY NO.	DATE APPOINTED 01/06/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Christopher BUSUTTIL, on or about October 3, 2021, at approximately 0035, while assigned to PSA 9 and on duty, in the vicinity of § 87(2)(b) Queens County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department in that they were discourteous to § 87(2)(b) by stating in sum and substance: "You think you're so fucking tough yea? You want to fight us...," without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Christopher BUSUTTIL, on or about October 3, 2021, at approximately 0035, while assigned to PSA 9 and on duty, in the vicinity of § 87(2)(b) Queens County, used offensive language, in that they made remarks to § 87(2)(b) based upon the gender of § 87(2)(b) to wit they said: "Yea, real fucking tough, you were just crying, bitch."	DISMISSED	


FIRST DEPUTY COMMISSIONER

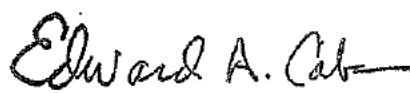
5/30/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

6/21/24
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 12, 2024

Re: CCRB Case No. 202106162 (Incident Date: October 3, 2021 on DADS No. 2023-27942)
involving Sergeant Christopher Busuttil, Tax No. 960299

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Christopher Busuttil and has determined that his actions do not warrant the proposed discipline.

In this matter, Sergeant Busuttil (who was in the rank of Police Officer at the time) responded with other members of the service to a call regarding an individual undergoing a mental health crisis. The individual's mother informed them that her son was being violent and had a mental health history. EMS on scene determined that the individual needed to go to the hospital for psychiatric evaluation. The individual refused to go voluntarily, and so the officers placed him in handcuffs to forcibly remove him to the hospital. During the interaction with the individual, Sergeant Busuttil used multiple profanities that served no legitimate law enforcement purpose.

After reviewing the facts and circumstances of the case, the Police Commissioner finds that Sergeant Busuttil's statements to the individual were discourteous and unbecoming of a professional police officer. However, none of the statements rises to the level of offensive language based on the totality of the circumstances. Therefore, the Police Commissioner agrees with the CCRB to dismiss the Charges and Specifications against Sergeant Busuttil and to issue him a Schedule "B" Command Discipline. However, rather than a penalty of 10 vacation days, the Police Commissioner intends to direct that Sergeant Busuttil forfeit five vacation days, the presumptive

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penalty for discourtesy. Further, the Police Commissioner intends to direct no disciplinary action for the allegation of offensive language.

Sincerely,

A handwritten signature in dark ink, appearing to read 'AS' or 'ASL', is written over the word 'Sincerely'.

for Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 20, 2024

The Honorable Edward Caban Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202106162 (Incident Date: October 3, 2021 on DADS No. 2023-27942)
involving Sergeant Christopher Busuttil, Tax No. 960299

Commissioner Caban:

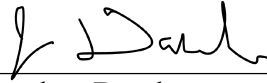
I am writing in response to the letter from Deputy Chief Marino, dated June 12, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) finding that Sergeant Busuttil's statements to the individual were discourteous and unbecoming of a professional police officer, but that none of the statements rose to the level of offensive language. Deputy Chief Marino further explained that while the Police Commissioner agrees with the CCRB proposal to dismiss the Charges and Specifications against Sergeant Busuttil and to issue him a Schedule "B" Command Discipline, rather than issue a penalty of 10 vacation days, the Police Commissioner intends to direct that Sergeant Busuttil forfeit five vacation days, the presumptive penalty for discourtesy. Further, for the allegation of offensive language, the Commissioner intends to direct no disciplinary action. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino's notification.

The negotiated penalty for the officer was based on charges substantiated by the Board and penalties proscribed by the NYPD Disciplinary Matrix. CCRB took into account the chaotic nature of the incident as well as the nature of the officer's actions during the incident. The CCRB contends that the Administrative Guide Section— 304-06 Pg. 1 Para 2 prohibits members of service from: Using discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation or disability and that the statement “oh you're crying now like a little bitch” was offensive in that, it questioned § 87(2)(b) gender identity by insinuating that crying is feminine. At the time PO Busuttil made the statements mentioned above to § 87(2)(b) he was handcuffed and surrounded by three police officers in the elevator. He was not a threat to himself, or any officers and the officers were not in a stressful situation. Thus, PO Busuttil calling § 87(2)(b) real “fucking” tough and calling him a “bitch” was discourteous, offensive, and did not serve any law enforcement purpose.

While the CCRB recognizes that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the negotiated penalty of the forfeiture of ten (10) vacation days be imposed. Sgt. Busuttil acknowledged substantiation of the charges and specifications at the plea conference, after consultation with counsel and agreeing to the same voluntarily and knowingly.

As such, CCRB requests that the Police Commissioner accept the plea, put forth by CCRB, in the herein matter of a Schedule B Command Discipline and forfeiture of ten (10) vacation days, for the charges and specifications in this case.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.